

Sudesh Kumari vs Pawan Singh on 20 June, 2024

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

RSA No. 25 of 2023
Reserved on 21.05.2024

Date of Decision: 20.06.2024

Sudesh Kumari

Pawan Singh.

Versus

.....Appellant

.....Respondent

Coram

Hon'ble Mr Justice Rakesh Kainthla, Judge.

Whether approved for reporting?

For the appellant : Mr. Sanjay Jaswal, Advocate.

For the respondent : Mr. Athrav Sharma, Advocate.

Rakesh Kainthla, J.

The present appeal is directed against the judgment and decree dated 31.08.2022 passed by learned Additional District Judge-

I, Kangra at Dharamshala (learned First Appellate Court), vide which the appeal filed by the appellant (plaintiff before learned Trial Court) was dismissed. (Parties shall hereinafter be referred to in the same manner as they were arrayed before the learned Trial Court for convenience).

1. Whether reporters of the local papers may be allowed to see the judgment? yes
2. Briefly stated, the facts giving rise to the present appeal are that the plaintiff filed a civil suit before the learned Trial Court .

seeking a declaration that she has succeeded her mother Savitri Devi's share in the suit land mentioned in the headnote of the plaint on the basis of Hindu Succession Act, entries regarding Savitri Devi's estate in favour of the defendant based on the Will dated 7.10.2010 bearing registration No. 3313/2010 registered with Sub Registrar, Indora, stated to have been executed by Savitri Devi are null and void and do not affect the rights of the plaintiff to succeed to her estate. A relief of permanent prohibitory injunction for restraining the defendant from alienating the suit land, dispossessing the plaintiff from the suit land, cutting and removing the trees and changing the nature of the suit land was also sought. In the alternative, the plaintiff prayed for a decree for possession to the extent of her share. It was pleaded that Savitri Devi was the owner in possession of the suit land. She died intestate on 15.12.2011, leaving behind the plaintiff as her only legal heir. The defendant got attested Mutation No. 407 dated 23.07.2012 in Mohal Badala, Tehsil Indora and Mutation No. 137 dated 23.07.2012 in Mohal Dhanera, Tehsil Fatehpur, regarding the estate of the deceased based on the Will stated to have been executed by her on 07.10.2010 registered with Sub Registrar, Indora at Sr. No. 3313/2010. Savitri Devi was not mentally fit and, in a sound, disposing state of mind. She never executed any Will and was not competent to execute the Will .

due to her mental status. The Will was prepared in connivance with the scribe and the witnesses. The plaintiff used to visit her mother.

The defendant used to reside at some distance from the house of Savitri Devi. He never served Savitri Devi during her lifetime. The Will is not binding upon the rights of the plaintiff. The plaintiff asked the defendant to admit her claim, but in vain. Hence, the suit was filed to seek the relief mentioned above.

3. The suit was opposed by the defendant by filing a written statement taking preliminary objections regarding lack of maintainability, locus standi and cause of action, the plaintiff having not approached the Court with clean hands, the plaintiff being estopped by her act and conduct from filing the suit and the suit being barred by limitation. The contents of the plaint were denied on merits.

It was asserted that Savitri Devi executed a Will on 07.10.2010 in favour of the defendant in her sound disposing state of mind. The defendant became the owner of the suit land on the basis of the Will.

Savitri Devi had mentioned in her Will that she had already given enough money, gold, silver jewellery and other articles to the plaintiff at the time of her marriage. Savitri Devi was residing with the defendant and the defendant looked after her in all respects. The .

defendant is nephew of Savitri Devi and he served Savitri Devi after the death of her husband. He bore all the expenses of the plaintiff and her mother Savitri Devi. The plaintiff sold her share of the land, which she had inherited from her father. The plaintiff filed the present suit to grab the property; hence, it was prayed that the suit be dismissed.

4. A replication denying the contents of the written statement and affirming those of the plaint was filed.

5. Learned Trial Court framed the following issues on 22.07.2014:-

- (1) Whether the Will dated 07.10.2010 is illegal, null and void and has not binding on the rights of the plaintiff, as alleged? OPP (2) Whether the Mutation No. 137 and Mutation No. 407 on the basis of aforesaid Will is also illegal, null and void, as alleged? OPP (3) Whether plaintiff is entitled for the declaration, as prayed for? OPP (4) Whether plaintiff is entitled for the permanent injunction, as consequential relief, as prayed for?

OPP (5) Whether in alternative plaintiff is entitled for possession of the suit land to the extent of her share, as prayed for? OPP (6) Whether suit of the plaintiff is not maintainable, as alleged? OPD (7) Whether Will dated 07.10.2010 is valid and legal, .

as alleged? OPD (8) Whether plaintiff has no cause of action or locus standi to file the present suit, as alleged? OPD (9) Whether plaintiff has not come with clean hands and has suppressed the material fact, as alleged? OPD (10) Whether plaintiff is estopped by her act and conduct from filing the present suit, as alleged? OPD (11) Whether suit of the plaintiff is time barred, as alleged? OPD (12) Relief.

6. The parties were called upon to produce the evidence and the plaintiff examined herself (PW-1), and Balwinder Singh (PW2).

The defendant examined Ramesh Singh Katoch (DW-1), Pawan Sharma (DW-2), himself (DW-3), Chain Singh (DW-4), and Tarsem Singh (DW-5).

7. The learned Trial Court held that the execution of the Will was duly proved by examining the attesting witnesses. The plaintiff had failed to establish any suspicious circumstances. The claim of the plaintiff that Savitri Devi was not in a sound disposing state of mind was not proved. No medical record was produced on record to establish this fact. There was no evidence of any fraud or misrepresentation. The Will mentioned one witness and one identifier but that is not material because the identifier can also be an attesting .

witness. Hence, learned Trial Court answered issue No. 7 in affirmative, the rest of the issues in negative and dismissed the suit of the plaintiff.

8. Being aggrieved from the judgment and decree passed by the learned Trial Court, the plaintiff filed an appeal, which was decided by learned Additional to District Judge-I, Kangra Dharamshala (learned First Appellate Court). Learned First Appellate r at Court concurred with the findings recorded by the learned Trial Court that due execution of the Will was proved, the person described as an identifier can be an attesting witness if he had put his signatures in acknowledgement of seeing the testator putting his signatures. Chain Singh (DW-4) had fulfilled this requirement. There was insufficient evidence to show the fraud or the physical/mental condition of Savitri Devi, the Will was duly registered, and the deceased had given a valid reason for disinheriting the plaintiff; hence, the learned First Appellate Court dismissed the appeal.

9. Being aggrieved from the judgments and decrees passed by the learned Courts below, the plaintiff has filed the present appeal .

proposing the following substantial questions of law: -

1. Whether the judgment and decree passed by the ld.

First Appellate Court in its entirety perverse and contrary to law and vitiated on account of perversity?

2. Whether the Will Ext. DW1/B qualifying the mandatory provision of Section 63 of the Indian Succession Act 1925?

3. Whether the active participation of the propounder/beneficiary of the Will is not itself suspicious circumstance of the execution of the Will or vitiating the legality of the Will?

4. Whether the exclusion of the First Grade Legal heir/Appellant, without any justification and vesting the property outside the family, is not itself suspicious circumstance qua execution of the Will and respondent bound to remove the same by leading cogent evidence?

10. I have heard Mr Sanjay Jaswal, learned counsel for the appellant/plaintiff and Mr Atharv Sharma, learned counsel for the respondent/defendant.

11. Mr. Sanjay Jaswal, learned counsel for the appellant-

plaintiff submitted that the Will was shrouded by suspicious circumstance. It is not signed by two witnesses and is shown to have been signed by one witness and one identifier. The defendant had failed to prove sufficient compliance with the provisions of Section 63 of the Indian Succession Act. The defendant had failed .

to dispel the suspicious circumstance appearing on the record;

therefore, he prayed that the present appeal be admitted on the proposed substantial questions of law.

12. Mr. Atharv Sharma, learned counsel for the respondent-defendant supported the judgment and decree passed required with the same.

r to by learned Courts below and submitted that no interference is

13. I have given considerable thought to the submissions at the bar and have gone through the records carefully.

14. The Will exhibit (DW-1/B) is shown to be signed by identifier Chain Singh (DW-4) and witness Tarsem Singh (DW-5).

It was submitted that due attestation of the Will is not proved as the Will should have been signed by two attesting witnesses. This submission cannot be accepted. Mere nomenclature of a person in the Will as an identifier is not sufficient to hold that the Will was not attested by two witnesses. It was laid down in Punni Vs. Sumer Chand A.I.R. 1995 H.P. 74 that an attesting witness should have put his signatures with an intention to attest the fact that he had seen the executant signing the document or had received his personal acknowledgement. It was observed: -

"15. In light of the aforementioned submissions, another question, which has been raked up is whether a scribe can or cannot be considered to be an attesting witness. The question posed does not require any elaborate discussion or reference to a host of decisions of various High Courts, which were cited at the bar, except by making reference to the decision of the Supreme Court in M. L. Abdul Jabbar Sahib v.

H. Venkata Sastri and Sons (AIR 1969 SC 1147), where the question was dealt with as to whether a scribe or the Sub Registrar registering a document can or cannot be considered to be an attesting witness. Reference was made to the definition of the word 'attested' appearing in Section 3 of the Transfer of Property Act and it was held that it was essential that the attesting witness should have put his signature with the intention that the same is for the purpose of attesting a fact that he has seen the executant sign or has received from him a personal acknowledgement of his signature. It was also held that if a person puts his signature on a document with some other purpose, e.g. to certify that he is a scribe or an identifier or a registering officer, he cannot be considered to be an attesting witness. The question, which had arisen in Abdul Jabbar Sahib's case (supra) was whether the security bond had been attested by the two witnesses or not. The argument was that the Sub Registrar having registered the security bond, under the provisions of the Indian Registration Act, 1908, can be regarded as an attesting witness since the endorsement on the document suggested that the same was read over and explained to the executant, who after admitting the contents thereof had also appended his signature thereupon. Such a contention was negated by holding that prima facie the registering officer puts .

his signature on the document in the discharge of his statutory duty under Section 59 of the Registration Act and not for the purpose of attesting it or certifying that he has received from the

executant a personal acknowledgement of his signature. Emphasis was laid on the intention of the person signing the document that whether the signatures were put and meant for the purpose of attesting it or certifying that the signatory had received from the executant a personal acknowledgement of his signatures. In para 8 of the report, it was held that :

r "Attested", in relation to an instrument, means and shall be deemed to have meant attested by two or more, witnesses each of whom has seen the executant sign or affix his mark to the instrument, or has seen some other person sign the instrument in the presence and by the direction of the executant, or has received from the executant personal acknowledgement of his signature or mark, or of the signature of such other person, and each of whom has signed the instrument in the presence of the executant; but it shall not be necessary, that more than one of such witnesses shall have been present at the same time and no particular form of attestation shall be necessary. It is to be noticed that the word 'attested', the thing to be defined, occurs as part of the definition itself. To attest is to bear witness to a fact.

Briefly, put the essential conditions of a valid attestation under Section 3 are (1) two or more witnesses have seen the executant sign the instrument or have received from him a personal acknowledgement of his signatures ; (2) with a view to attest or to bear witness to .

his fact each of them has signed the instrument in the presence of the executant. It is essential that the witness should have put his signature *animo attestandi*, that is, for the purpose of attesting that he has seen the executant sign or has received from him a personal acknowledgement of his signature. If a person puts his signature on the document for some other purpose e. g., to certify that he is a scribe or an identifier or a registering officer, he is not an attesting witness."

16. Unless sufficient and cogent evidence is led showing that the person putting his signature on a document signed it for the purpose of attesting it or certifying that he has received from the executant a personal acknowledgement of his signature, he cannot be regarded as an attesting witness. In the absence of any evidence in the case, signatures are appearing on the document only to certify that he is a scribe an identifier or a registering officer, he is to be considered as such and not an attesting witness. To be regarded as an attesting witness, it must be shown that he had put his signature with the intention and for the purpose of attesting it or certifying of having received from the executant a personal acknowledgement of his signature."

15. Similarly, it was held in *N. Kamalan vs. Ayyaswamy* 2001(7) SCC 503 that the Court has to ascertain the intention of a person putting his signatures and if the signatures were put in token of the fact that the person had seen the executant putting his signatures, he would be called an attesting witness. It was .

observed: -

"27. It was next contended that in the event of there being an intent to attest, that itself should be sufficient compliance with the requirement of law. While the introduction of the concept of animus to attest cannot be doubted in any way whatsoever and also do feel it is relevant in the matter of proof of a document requiring attestation by relevant statutes but the same is dependant on the fact situation. The learned Judge as noticed above has himself recorded that two significant requirements of the term 'attest' viz., that the attester should witness the execution thereby thus implying his presence on the occasion and secondly that he should certify for execution by subscribing his name as a witness which implies consciousness and intention to attest."

16. It was held in *Narotam Vs. Laxmi Devi* AIR 2016 HP 160 that unless sufficient evidence is led to show that the person putting his signatures on the document signed it to attest it, the person cannot be called to be an attesting witness. It was observed: -

"17. In my considered view had it being clarified in the Will itself that M.P. Kaushal had appended his signatures as an attesting witness as well as identifier then it would have been a different matter. However, in the absence of the same, it cannot be inferred that M.P. Kaushal was also an identifier as well as an attesting witness. Accordingly, in the facts of the present case, it cannot be held that the identifier was also the attesting witness. This Court has held in *Smt. Punni v. Sumer Chand* and .

others, 1994 (2) C.L.J. (H.P.) 290, which judgment has also been relied upon by the learned Appellate Court that unless sufficient and cogent evidence is led to show that the person putting his signature on a document signed it for the purpose of attesting it or certifying that he has received from the executant a personal acknowledgement of his signature, he cannot be regarded as an attesting witness."

17. Thus, the Court has to see the intention of the person putting his signatures and if he had put the signatures in acknowledgement of having seen the testator putting his signatures, he will fall within the definition of the attesting witness; even though, he has been described as an identifier.

18. Chain Singh (DW-4) stated in his proof affidavit (Exhibit DW-4/A) that Savitri Devi executed a Will in favour of Pawan Singh on 7.10.2010. She was in her sound mind and health at that time. The Will was written by document writer Ramesh Singh Katoch as per her instructions in his presence and in the presence of Tarsem Singh. Ramesh Katoch read over and explained the Will to Savitri Devi in his presence and in the presence of a marginal witness. Savitri Devi put her thumb impression in their presence. He and the witness put their signatures in her presence. He identified his signatures and the .

signatures of Tarsem Singh. The Will was presented for registration and the Sub Registrar carried out the inquiry. The daughter of Savitri Devi was also present and she had executed a General Power of Attorney in favour of Smt. Uma Rani on the same day, which was also written by Ramesh Singh Katoch.

19. He stated in his cross-examination that he is the Lamberdar of Village Kursan and Tibbi. Lamberdar of Village Bhojpur and Badala is different. The distance between his Village and Bhojpur is about 15-16 kilometers. He admitted that he had put his signature as an identifier on the Will. He admitted that he was not related to Savitri Devi but he knew her. He had accompanied a 'Barat' and stayed in Savitri Devi's house. He knew Pawan. He had put the signatures after 2-2.30 pm. Savitri Devi was aged about 70 years. Pawan did not accompany her. He denied that the Will was not executed at the instance of Savitri Devi and a false document was prepared.

20. This witness has categorically stated that the Will was written in his presence. It was read over and explained to Savitri Devi in his presence. Savitri Devi put her signatures in his presence and he put his signatures in the presence of Savitri Devi.

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This clearly shows that he had an intention of acknowledging the signatures of Savitri Devi in his presence and that is why he had put signatures on the Will. This fulfils the requirement of being an attesting witness and the mere fact that he has been described as an identifier is not sufficient to show that the Will was not attested by two witnesses.

21. Ramesh Singh Katoch (DW-1) stated that he wrote the Will on the instructions of Savitri Devi in the presence of Chain Singh Lambardar Village Kursan and Tarsem Singh. She was in her sound mind and health at the time of the execution of the Will. The Will was read over and explained to Savitri Devi in the presence of the marginal witnesses. She put her thumb impression in the presence of marginal witnesses. The witnesses put their signatures in Hindi and English respectively as identifier and attesting witness in the presence of Savitri Devi. The daughter of Savitri Devi was also present who had executed a General Power of Attorney in favour of Uma Rani alias Jyoti.

22. He stated in his cross-examination that he did not know Savitri and Santosh personally. He denied that Pawan had .

brought them to him. Savitri was old but he could not tell her age.

Pawan was not present with her but came after some time. The Will was written before his arrival. Savitri Devi and her daughter had visited him alone and nobody had accompanied them. He denied that Savitri Devi was not in a sound disposing state of mind. There was one identifier and one witness to the Will. He volunteered to say that the identifier was also the attesting witness.

23. The statement of this witness also shows that Chain Singh had put his signature after having seen Savitri putting her thumb impression and his statement corroborates the version of Chain Singh. Hence, his testimony also proves that Chain Singh had also attested the witness even though he was described as an identifier.

24. Tarsem Singh (DW-5) marginal witness to the Will stated that Savitri Devi executed a Will in favour of Pawan Singh on 07.10.2010 in her sound disposing state of mind. The Will was written on

her instructions in his presence and in the presence of Chain Singh. The Will was read over and explained to Savitri Devi by Ramesh Singh Katoch, the document Writer. Savitri Devi put her thumb impression. He and Chain Singh put their signatures in .

her presence. The Will was presented before the Sub Registrar, Indora, who enquired Savitri Devi regarding the recitals of the Will. Daughter of Savitri Devi, namely, Smt. Sudesh Kumari was also present and she had executed a General Power of Attorney on that day, which was also written by Ramesh Singh Katoch.

25. He stated in his cross-examination that he is a resident of a different Village. The house of Savitri Devi is located at a distance of 200-250 meters from his house. Their Panchayats were also different. He had visited Indora to get the Power of Attorney from his sister. The house of Pawan was at a distance of about 200 meters from the house of Savitri Devi. He admitted that the plaintiff was the sole daughter of Savitri. He denied that Savitri was a simpleton, who could not understand her welfare. The identifier was also an attesting witness. Savitri Devi was aged about 55-60 years. He denied that the plaintiff used to serve the deceased or that the mental condition of the deceased was not proper.

26. The testimony of this witness also shows that the identifier had put his signature as a witness. His statement also .

shows that Savitri Devi put her thumb impression first and thereafter the attesting witness and the identifier put their signatures. His statement shows that Chain Singh had seen Savitri Devi putting her thumb impression and he had put his signatures thereafter. His statement corroborates the statement of Chain Singh that he had put his signatures in token of having seen the testatrix putting her thumb impression. Hence, the learned Courts below had rightly held that the Will was duly attested by two witnesses.

27. The witnesses specifically stated that the plaintiff was present in the office of the Sub-Registrar because she had executed a General Power of Attorney in favour of Jyoti @ Uma Rani wife of Pawan Kumar Sharma. Chain Singh (DW3) stated that on 7.10.2010, Sudesh Kumari daughter of Savitri got executed a General Power of Attorney in favour of Smt. Uma Rani alias Jyoti.

This General Power of Attorney was written by Ramesh Singh Katoch on her instructions, which was read over and explained to Sudesh Kumari, who put her signature on the General Power of Attorney. The plaintiff admitted in her cross-examination that Uma Rani alias Jyoti is the wife of the defendant. She admitted that on 7.10.2010, she had executed a General Power of Attorney in .

favour of Uma Rani alias Jyoti wife of Pawan Kumar Sharma. She denied that this document was written by Ramesh Singh Katoch and was entered in his register. She denied that Will was also written in her presence; however, she admitted her signatures on the General Power of Attorney.

28. The admission made by the plaintiff regarding her signatures on the power of attorney corroborates the version of the defendant's witnesses that the plaintiff was also present with her

mother Savitri Devi and she knew about the execution of the Will.

The fact that she had not protested at the time of the execution of the Will and filed the suit after the death of her mother shows that the plaintiff did not have any grievance regarding the execution of the Will by her mother during her lifetime.

29. It was submitted that the witnesses and the identifier belong to a different Village and this is a suspicious circumstance.

This is not acceptable. It was laid down by this Court in Naudha alias Budhia Versus Sudershan Singh 1998 (1) Shim. L.C. 388 that the witnesses belonging to a different village is not a suspicious circumstance to invalidate the execution of the Will. It was observed:

12. In Ishwar Dutt v. Smt. Leela Devi and others, 1997 (1) SLJ 684 a question arose whether the joining of attesting witnesses who did not belong to the village of the testator would be a suspicious circumstance. It was held that the mere fact that attesting witnesses are not from the village of the testator would not be a suspicious circumstance.

13. The High Court of Punjab and Haryana also in Tara Singh v. Smt Shanti and others, 1988 PLJ 77 has held that it is not by itself sufficient to disbelieve the witnesses or create any suspicion if the attesting witnesses of the will are not from the village of the testator.

30. Similarly, it was held in Jagdish v. Shibi Devi, 2019 SCC OnLine HP 1008 = 2019 (3) Civil Court Cases 564, that a Will cannot be doubted on the ground that the attesting witnesses did not belong to the village of the testator.

31. In the present case, both the witnesses stated that they knew Savitri Devi. Chain Singh stayed in the house of Savitri when he had accompanied 'Barat' and Tarsem was residing at a distance of 200-250 meters from her house. Therefore, it is not the case where some stranger was associated as witnesses but the person who were known to the testatrix were associated as witnesses and there is nothing suspicious in it.

32. The plaintiff asserted that the condition of Savitri was not proper. She also examined Balwinder (PW-2) to prove this fact. He admitted in his cross-examination that the plaintiff resided in her matrimonial home, whereas Savitri resided at Badala with Pawan. He also admitted that he had no land in Village Badala. He denied that he was not on visiting terms to Village Badala and volunteered to say that he was on visiting terms to the Village after the marriage of the plaintiff.

33. This witness has not given any instance to show that the mental condition of Savitri was not proper. He has made a general statement not supported by any contemporaneous evidence, which is insufficient to prove the mental condition of the testatrix. Learned Courts below had rightly held that no medical record was produced to show the mental condition of the deceased.

It was laid down in *Ashok Bauri v. State*, 2021 SCC OnLine Del 1248= 2021 (279) DLT 561 that there is a presumption in favour of sanity and the burden lies on the person who challenges it to prove that the person was insane. It was observed:

"8. Soundness of mind, for the purposes of contracting, is defined in Section 12 of the Indian Contract Act, 1872 and which in my view would have application in the matter of soundness of mind .

requisite for making of a Will as well. As per the said provision, (i) a person is said to be of sound mind, if, at the time of the making of the contract, he is capable of understanding it and of forming a rational judgment as to its effect upon his interests; (ii) a person who is usually of unsound mind, but occasionally of sound mind, may make a contract when he is of sound mind; and, (iii) a person who is usually of sound mind, but occasionally of unsound mind, may not make a contract when he is of unsound mind.

9. As would be obvious from the above, a common thread is found to run between Section 12 of the Contract Act and Section 59 of the Indian Succession Act.

10. Chapter VII titled "Of the Burden of Proof", of Part III titled "Production and Effect of Evidence", of the Evidence Act deals with the issue with which this Court is concerned herewith. Per Section 101 thereunder, whosoever desires any Court to give judgment as to any legal right or liability dependent on the existence of facts, which he asserts, must prove that those facts exist. Since the propounder of a Will as per Section 59 of the Indian Succession Act is required to prove that the testator at the time of the making of the Will was of sound mind, the burden of proof would be on the propounder. However, that would be so where none is opposing the Will propounded and the Will has to be proved for the satisfaction of the Court. However when a document propounded as a Will is contested, what would be required to be proved is only what is in issue and only if the party disputing the document propounded as a Will disputes/controverts that the testator/testatrix, at the time of making the Will was of sound mind, .

would soundness of mind be in issue and required to be proved. However, if the soundness of mind is not specifically denied then as per the Rules aforesaid contained in Order VIII Rule 5 of the CPC, soundness of mind shall be deemed to have been admitted. In the event of denial of the soundness of mind, the question as herein arises, on whom the onus should be, whether on the propounder or the opposite party, arises.

11. Section 114 under the aforesaid Chapter VII of Part III of the Evidence Act enables the Court to presume the existence of any fact which it thinks likely to have happened, regard being had to the common course of natural events, human conduct and public and private business, in their relation to the facts of the case.

12. The common course of natural events and human conduct is soundness of mind and unsoundness of mind an aberration. If a testator/testatrix has led a normal life, and performed day-to-day functions in the normal course of human conduct, the presumption under Section 114 would be of soundness rather than unsoundness of mind."

34. It was laid down by this Court in *Shanti Devi vs. Dali Devi & Anr* 2002(2) SLJ 1095 that the old age of the executant does not show that she was not in a sound disposing state of mind.

It was observed:-

"16. The second contention of Mr Bhardwaj. learned counsel for the appellant, that Munshi Ram was 90 years of age and therefore, was not in disposing mind at the time of execution of the Will is .

concerned, it has no substance. There is nothing on record to show that the testator was not in sound disposing mind at the time of execution of the Will.

It is true that the validity of a will depends on the testator being of sound disposing mind at the time of the making of the Will but at the same time, a sound disposing mind does not depend upon the advanced age. The mere fact that Munshi Ram was 90 years of age at the time of execution of the will, would not lead to the conclusion that he was not in sound disposing mind. In *Tirath Singh & Ors v. Sajjan Singh (Died) through his LRs & Ors.* 1998(1) S.L.J. 232 it was held that mere advanced age Will does not lead to any presumption that the testator was not of sound disposing mind. The very fact that the Will in question was got registered by the testator on the same date shows that the testator was of sound disposing mind at the relevant time. See *Gurpal Singh v. Darshan Singh* 1998 (1) S.L.J.

174. Mr Bhardwaj. learned counsel for the appellant was unable to point out any evidence on record except that of a self-serving statement of the plaintiff, that the testator was not of sound disposing mind. There is no merit in the contention that the appellant was mentally incapacitated to execute a valid Will.

35. This position was reiterated in *Om Prakash & others Vs. Bhup Singh & others* 2009 HLJ 106 wherein it was observed:-

"6. The mere fact that the testator was old does not conclusively establish that he was not possessed of the sound mental disposing state of mind and was not in a position

to understand the disposition, which he .

was making. This fact had to be established by leading reliable evidence and was not a mere matter of conjecture and inference. Once the due execution of the will was established the intention of the testator as expressed in the will was to be given effect."

36. The Will was duly registered. It was laid down by this Court in Tirath Singh Versus Sajjan Singh 1988 (1) S.L.J. 232 that the mere fact that the deceased was an old person cannot lead to any inference that he was not in a sound disposing state of mind when the Will was registered. It was observed:

"The Will was registered on December 13, 1972. It carries the endorsement of the Sub-Registrar.

Harbhajan Singh Lambardar and Kartar Singh (DW.3) attesting witnesses of the Will were also present at that time. The Sub-Registrar certified that the Will was read over to Ralla who admitted the contents of it as correct and then he thumb-marked the same. From this, it has to be presumed that at the time of registration of the Will, Ralla was having a sound disposing mind and it was executed by him while in his full senses. From the mere fact that the testator of the Will, namely Ralla, was of advanced age, "no presumption can be drawn that he was not having sound disposing mind. Therefore, the contention in that respect is repelled."

37. Similar is the judgment in Gurpal Singh Versus Darshan Singh 1998 (1) S.L.J. 174 wherein it was held:

".....The Will Ext. D3 is a registered document. From this, a presumption arises that the testator of a Will was having sound disposing mind at the time of making the Will and it was executed by him especially when there .

is no evidence to show that at the time of execution of the Will, Phuman Singh was suffering from any mental ailment....."

38. In the present case, there is no evidence regarding the impairment of the mental faculty of the testatrix. Hence, the plea that she was not of a sound disposing state of mind cannot be accepted.

39. to The Will Exhibit (DW-1/B) reads that Savitri Devi had one daughter, who was married. Savitri had spent a lot of money and gifted jewellery, clothes and other articles to her daughter at the time of her marriage. She was happy in her matrimonial home. Her nephew Pawan was residing with her and was taking care of her. She was happy with his services and had executed the Will in favour of Pawan.

40. The deceased had given a reason for excluding the plaintiff from her estate. She stated that she had gifted the jewellery cash and other articles to the plaintiff and nothing was due to her. She was executing the Will after being satisfied with the services rendered by the defendant. The witness of the plaintiff Balwinder Singh (PW-2) also admitted that the deceased was residing with Pawan and the recital in the Will that the deceased .

was residing with the defendant is duly proved on record. Thus, the submission that there was no justification for excluding the plaintiff and executing the Will in favour of the defendant is not acceptable.

41. Ramesh Singh Katoch admitted in his cross-

examination that the defendant had also visited Tehsil Complex. It was submitted that the presence of defendant is a suspicious circumstance. However, no other witness has deposed about the presence of the defendant. Even the document writer Ramesh Singh Katoch stated that he had started writing the Will before the arrival of the defendant. He specifically stated that the deceased and her daughter had visited him together and there was no person with them. This clearly shows that the execution of the Will cannot be doubted merely because the defendant happened to be present in the office of the Sub-Registrar. The learned Courts below had rightly held that this circumstance is not sufficient to doubt the execution of the Will.

42. Both the learned Courts have concurrently found that the due execution and attestation of the Will were proven. There is no .

suspicious circumstance surrounding the execution of the Will. It was laid down by the Hon'ble Supreme Court in *RurSingh v. Bachan Kaur*, (2009) 11 SCC 1: (2009) 4 SCC (Civ) 387: 2009 SCC OnLine SC 320, that it is not permissible for the High Court to interfere with the concurrent findings of fact regarding the execution of the Will. It was observed:

"13. The High Court while exercising its jurisdiction under Section 100 of the Code of Civil Procedure exercises a limited jurisdiction. It may interfere with a finding of fact arrived at by the trial court and/or the first appellate court only in the event, that a substantial question of law arises for its consideration.

14. The High Court framed only one substantial question of law viz. whether the will had been duly proved and/or was otherwise genuine. It is essentially a question of fact.

The learned trial Judge as also the first appellate court in opining that the will was genuine and free from suspicious circumstances inter alia took into consideration the existing materials on record viz. the parties ordinarily do not want their agricultural land to go out from the family and in that view of the matter if Kehar Singh had bequeathed his agricultural land only in favour of his sons and excluding the daughters from inheritance, no exception thereto could be taken.

18. The High Court essentially entered into the arena of appreciation of evidence. It interfered with the concurrent findings of fact arrived at by the courts below."

43. It was laid down by the Hon'ble Supreme Court in Gurnam Singh v. Lehna Singh, (2019) 7 SCC 641: (2019) 3 SCC .

(Civ) 709: 2019 SCC OnLine SC 374, that where the First Appellate Court had appreciated the facts regarding the execution of the Will, it is not permissible for the High Court to interfere with this findings of fact in second appeal under Section 100 of CPC. It was observed:

"15. Applying the law laid down by this Court in the aforesaid decisions to the facts of the case on hand, we are of the opinion that the High Court has erred in reappreciating the evidence on record in the second appeal under Section 100 CPC. The High Court has materially erred in interfering with the findings recorded by the first appellate court, which were on reappreciation of evidence, which was permissible by the first appellate court in the exercise of powers under Section 96 CPC.

Cogent reasons, on appreciation of the evidence, were given by the first appellate court. The first appellate court dealt with, in detail, the so-called suspicious circumstances which weighed with the learned trial court and thereafter it came to the conclusion that the will, which as such was a registered will, was genuine and did not suffer from any suspicious circumstances. The findings recorded by the first appellate court are reproduced hereinabove. Therefore, while passing the impugned judgment and order [Lehna Singh v. Gurnam Singh, Civil Regular Second Appeal No. 2191 of 1985, order dated 27-11-2007 (P&H)], the High Court has exceeded its jurisdiction while deciding the second appeal under Section 100 CPC."

44. In Kashibai v. Parwatibai, (1995) 6 SCC 213, the High Court had interfered with the findings of fact recorded by the Courts .

regarding the validity of the Will. It was held by the Hon'ble Supreme Court that it is not permissible for the High Court to interfere with the findings of fact related to the execution of the Will while hearing the second appeal. It was observed:-

"11..... In the present case, the trial court after a close scrutiny and analysis of the evidence of Defendant 1, SmtParvati Bai, VirBhadra, Sheikh Nabi, Shivraj and GyanobaPatil who are witnesses to the Will recorded the finding that none of them deposed that Lachiram had signed the said Will before them and they had attested it.

None of them except Sheikh Nabi even deposed as to when the talk about the execution of Will was held. The witness Sheikh Nabi, however, deposed that the talk about the Will also took place at the time of the talk about the adoption. But this witness too did not depose that deceased Lachiram had signed the alleged Will in his

presence. In the absence of such evidence it is difficult to accept that the execution of the alleged Will was proved in accordance with law as required by Section 68 of the Evidence Act read with Section 63 of the Indian Succession Act and Section 3 of the Transfer of Property Act. It may be true as observed by the High Court that the law does not emphasise that the witness must use the language of the section to prove the requisite merits thereof but it is also not permissible to assume something which is required by law to be specifically proved. The High Court simply assumed that Lachiram must have put his signature on the Will Deed in the presence of the attesting witness Sheikh Nabi simply because the Deed of Adoption is admitted by the witness to have been executed on the same day. The High Court committed a serious error in making the observations that broad parameters of Nabi's evidence would show that Lachiram .

executed the Will in his presence, that he signed the Will being part of the execution of the testament and this evidence in its correct background would go to show that what was required under Section 63 has been carried out in the execution of the Will. With respect to the High Court, we may say that these findings of the High Court are clearly based on assumptions and surmises and, totally against the weight of the evidence on record. The trial court on a close and thorough analysis of the entire evidence came to a proper conclusion that the Will has not been proved in accordance with the law which finding has been further affirmed by the lower appellate court after an independent reappraisal of the entire evidence with which we find ourselves in agreement as there was hardly any scope or a valid reason for the High Court to interfere with.

12. Further, it may not be out of place to mention that sub-section (1) of Section 100 of the Code of Civil Procedure explicitly provides that an appeal shall lie to the High Court from every decree passed in appeal by any court subordinate to the High Court if the High Court is satisfied that the case involves a substantial question of law. Sub-section (4) of Section 100 provides that when the High Court is satisfied that a substantial question of law is involved in any case it shall formulate that question. But surprisingly enough the High Court seems to have ignored these provisions and proposed to reappraise the evidence and interfere with the findings of fact without even formulating any question of law. It has been the consistent view of this Court that there is no jurisdiction to entertain a second appeal on the ground of an erroneous finding of fact, based on appreciation of the relevant evidence. There is a catena of decisions in support of this view. Having regard to all the facts and circumstances of the present case discussed above, we are satisfied that there was no justification for the High Court .

to interfere with the well-reasoned findings of the two courts below. Consequently, this appeal must succeed."

(Emphasis supplied).

45. It was held in *Lisamma Antony v. Karthiyayani*, (2015) 11 SCC 782, that it is impermissible to interfere with the findings of fact under section 100 of CPC. It was held:

r to "11. It is a settled principle of law that a second appeal under Section 100 of the Code of Civil Procedure, 1908, cannot be admitted unless there is a substantial question of law involved in it. As to what is a substantial question of law, in *Kondiba Dagadu Kadam v. Savitribai Sopan Gujar* [*Kondiba DagaduKadam v. Savitribai Sopan Gujar*, (1999) 3 SCC 722], this Court has explained the position of law as under : (SCC pp. 725-26, para 6) "6. If the question of law termed as a substantial question stands already decided by a larger Bench of the High Court concerned or by the Privy Council or by the Federal Court or by the Supreme Court, its merely wrong application on the facts of the case would not be termed to be a substantial question of law. Where a point of law has not been pleaded or is found to be arising between the parties in the absence of any factual format, a litigant should not be allowed to raise that question as a substantial question of law in a second appeal. The mere appreciation of the facts, the documentary evidence or the meaning of entries and the contents of the document cannot be held to be raising a substantial question of law. But where it is found that the first appellate court has assumed jurisdiction which did not vest in it, the same can be adjudicated in the second appeal, treating it as a .

substantial question of law. Where the first appellate court is shown to have exercised its discretion in a judicial manner, it cannot be termed to be an error either of law or of procedure requiring interference in the second appeal."

12. In view of the above position of law, the question formulated by the High Court in the present case, as quoted above, cannot be termed to be a question of law, much less a substantial question of law. The above question formulated is nothing but a question of fact. Merely for the reason that on appreciation of evidence another view could have been taken, it cannot be said that the High Court can assume the jurisdiction by terming such a question as a substantial question of law.

13. Having gone through the impugned order challenged before us and after considering the submissions of the learned counsel for the parties, we are of the view that the High Court has simply re-appreciated the evidence on record and allowed the second appeal and remanded the matter to the trial court."

46. Similar view was taken in *Narendra v. Ajabrao*, (2018) 11 SCC 564, wherein it was observed:-

"17. In the first place, we find that the High Court decided the second appeal like a first appeal under Section 96 of the Code inasmuch as the High Court went on appreciating the entire oral evidence and reversed the findings of fact of the first appellate court on the question of adverse possession. Such an approach of the High Court, in our opinion, was not permissible in law.

18. Second, the High Court failed to see that a plea of adverse possession is essentially a plea based on facts and once the two courts, on appreciating the evidence, recorded that a finding may be of reversal, such finding is .

binding on the second appellate court. It is more so as it did not involve any question of law much less substantial question of law. This aspect of law was also overlooked by the High Court.

19. Third, the High Court has the jurisdiction, in appropriate cases, to interfere in the finding of fact provided such finding is found to be wholly perverse to the extent that no judicial person could ever record such finding or when it is found to be against any settled principle of law or pleadings or evidence. Such errors constitute a question of law and empower the High Court to interfere. However, we do not find any such error here."

47. It was held in *Ramathal v. Maruthathal*, (2018) 18 SCC 303 that it is not appropriate for the High Court to disturb the concurrent findings of fact by re-appreciating the evidence and its jurisdiction is confined to the substantial question of law. It was observed:-

"13. It was not appropriate for the High Court to embark upon the task of reappreciation of evidence in the second appeal and disturb the concurrent findings of fact of the courts below which are the fact-finding courts. At this juncture, for better appreciation, we deem it appropriate to extract Sections 100 and 103 CPC, which reads as follows:

"100. Second appeal.--(1) Save as otherwise expressly provided in the body of this Code or by any other law for the time being in force, an appeal shall lie to the High Court from every decree .

passed in appeal by any court subordinate to the High Court, if the High Court is satisfied that the case involves a substantial question of law.

(2) An appeal may lie under this section from an appellate decree passed ex parte.

(3) In an appeal under this section, the memorandum of appeal shall precisely state the substantial question of law involved in the appeal. (4) Where the High Court is satisfied that a substantial question of law is involved in any case, it shall formulate that question.

(5) The appeal shall be heard on the question so formulated and the respondent shall, at the hearing of the appeal, be allowed to argue that the case does not involve such question:

103. Power of the High Court to determine issues of fact.-- In any second appeal, the High Court may, if the evidence on the record is sufficient, determine any issue necessary for the disposal of the appeal--

(a) which has not been determined by the lower appellate court or both by the court of first instance and the lower appellate court, or

(b) which has been wrongly determined by such court or courts by reason of a decision on such question of law as is referred to in Section 100."

14. A clear reading of Sections 100 and 103 CPC envisages that a burden is placed upon the appellant to state in the memorandum of grounds of appeal the substantial question of law that is involved in the appeal, then the High Court being satisfied that such a substantial question of law arises for its consideration has to .

formulate the questions of law and decide the appeal. Hence a prerequisite for entertaining a second appeal is a substantial question of law involved in the case which has to be adjudicated by the High Court. It is the intention of the legislature to limit the scope of a second appeal only when a substantial question of law is involved and the amendment made to Section 100 makes the legislative intent more clear that it never wanted the High Court to be a fact-finding court. However, it is not an absolute rule that the High Court cannot interfere in a second appeal on a question of fact. Section 103 CPC enables the High Court to consider the evidence when the same has been wrongly determined by the courts below on which a substantial question of law arises as referred to in Section

100. When appreciation of evidence suffers from material irregularities and when there is perversity in the findings of the court which are not based on any material, the court is empowered to interfere on a question of fact as well. Unless and until there is absolute perversity, it would not be appropriate for the High Courts to interfere in a question of fact just because two views are possible;

in such circumstances, the High Courts should restrain itself from exercising the jurisdiction on a question of fact.

15. When the intention of the legislature is so clear the courts have no power to enlarge the scope of Section 100 for whatsoever reasons. Justice has to be administered in accordance with the law. In the case on hand, the High Court has exceeded its jurisdiction by reversing the well- considered judgment of the courts below which is based on cogent reasoning. The learned Judge ought not to have entered the arena of reappraisal of the evidence, hence the whole exercise done by the High Court is beyond the scope and jurisdiction conferred under Section 100 CPC."

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48. Similarly, it was held in *C. Doddanarayana Reddy v. C. Jayarama Reddy*, (2020) 4 SCC 659 that the High Court cannot interfere with the concurrent findings of fact unless there is perversity or the same is de hors the evidence led before the Courts:

"25. The question as to whether a substantial question of law arises has been a subject matter of interpretation by this Court. In the judgment in *Karnataka Board of*

Wakf v. Anjuman-E-Ismail Madris-Un-Niswan [Karnataka Board of Wakf v. Anjuman-E-Ismail Madris-Un-

Niswan, (1999) 6 SCC 343], it was held that findings of the fact could not have been interfered with in the second appeal. This Court held as under : (SCC pp. 347-48, paras 12-15) "12. This Court had repeatedly held that the power of the High Court to interfere in a second appeal under Section 100 CPC is limited solely to deciding a substantial question of law if at all the same arises in the case. It has deprecated the practice of the High Court routinely interfering in pure findings of fact reached by the courts below without coming to the conclusion that the said finding of fact is either perverse or not based on material on record.

13. In Ramanuja Naidu v. V. Kanniah Naidu [Ramanuja Naidu v. V. Kanniah Naidu, (1996) 3 SCC 392], this Court held : (SCC p. 393) 'It is now well settled that concurrent findings of fact of the trial court and the first appellate court cannot be interfered with by the High Court in the exercise of its jurisdiction under Section 100 of the .

Civil Procedure Code. The Single Judge of the High Court totally misconceived his jurisdiction in deciding the second appeal under Section 100 of the Code in the way he did.'

14. In Navaneethammal v. Arjuna Chetty [Navaneethammal v. Arjuna Chetty, (1996) 6 SCC 166], this Court held : (SCC p. 166) 'Interference with the concurrent findings of the courts below by the High Court under Section 100 CPC must be avoided unless warranted by compelling reasons. In any case, the High Court is not expected to reappreciate the evidence just to replace the findings of the lower courts. ... Even assuming that another view is possible on a reappreciation of the same evidence, that should not have been done by the High Court as it cannot be said that the view taken by the first appellate court was based on no material.'

15. And again in Taliparamba Education Society v. Moothedath Mallisseri Illath M.N. [Taliparamba Education Society v. Moothedath Mallisseri Illath M.N., (1997) 4 SCC 484], this Court held : (SCC p. 486, para 5) '5. ... The High Court was grossly in error in trenching upon the appreciation of evidence under Section 100 CPC and recording reverse finding of fact, which is impermissible."

49. Thus, it is not permissible for this Court to re-appreciate the evidence, when no perversity has been shown. Since in the present .

case, the learned Courts below had recorded their findings on the evidence, therefore, it is not permissible to interfere with the same.

50. The plaintiff did not lead any other evidence to show that the defendant had prevailed upon the testatrix. The learned Courts below had rightly appreciated the evidence produced before them. The Will satisfies the mandatory requirements of Section 63 of the Indian Succession Act. The exclusion of the plaintiff was explained and the reason for executing the Will in favour of the defendant was

given.

There was no active participation of the beneficiary of the Will;

hence, the proposed substantial questions of law do not arise in the present case.

51. No other point was urged.

52. In view of the above, the present appeal fails and the same is dismissed. Pending miscellaneous applications, if any, also stand disposed of.

20th June 2024
(Tarun)

(Rakesh Kainthla)
Judge